IN THE COURT OF [COURT NAME]

Lawyer's Brief for Complainant in Cyber Dispute Case

Introduction

This brief is submitted on behalf of the Complainant in a cyber dispute case against the Respondent. The dispute revolves around unauthorized financial transactions facilitated through the sharing of a One-Time Password (OTP), resulting in significant financial loss to the Complainant.

Facts of the Case

1. **Sharing of OTP**: The Complainant shared their OTP with a party who claimed to require it for a legitimate purpose. This act, though done in good faith, was exploited by the Respondent to gain unauthorized access to the Complainant's financial accounts.
2. **Unauthorized Deduction**: Subsequent to obtaining the OTP, an amount of ₹45,000 was deducted from the Complainant's account without their consent or knowledge. This deduction was discovered by the Complainant upon checking their account statements.

Legal Grounds

The actions of the Respondent are in clear violation of several legal principles, notably:

- **Transfer of Property Act, 1882, Section 46**: This section pertains to the transfer of property and the conditions under which such transfers are considered valid. The unauthorized transfer of funds from the Complainant's account to another account, facilitated by the misuse of the OTP, does not meet the criteria for a valid transfer as per this act. The transfer was made without the free consent of the Complainant, which is a crucial element for any valid transfer of property.

Relief Sought

The Complainant seeks the following reliefs from this Hon'ble Court:

1. **Refund of ₹45,000**: The Complainant requests that the Respondent be directed to refund the amount of ₹45,000 that was deducted from their account without authorization.
2. **Compensation for Loss Incurred**: In addition to the refund, the Complainant also seeks compensation for the loss incurred due to the Respondent's actions. This includes any financial hardship, emotional distress, and other consequential losses suffered by the Complainant as a direct result of the unauthorized transaction.

Conclusion

In conclusion, the Complainant's case against the Respondent is grounded in the clear violation of legal principles governing property transfer and the protection of individuals against fraudulent activities. The Complainant has suffered significant loss and distress due to the Respondent's actions and seeks justice through the reliefs outlined above. It is the hope of the Complainant that this Hon'ble Court will consider the merits of the case and grant the

reliefs sought, thereby upholding the principles of justice and protecting the rights of individuals against cyber fraud.

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